

This is not a case involving an arbitration clause that might be invoked by a mere implied demand for arbitration by virtue of bringing of a motion to compel arbitration. For example, where the relevant arbitration clause language merely requires a party to make a “demand” or to give “notice” requesting arbitration, it may well be enough to seek to compel arbitration after the initiation of a lawsuit by the other party or other conduct tantamount to a refusal to arbitrate the controversy. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577 (a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration).

Here, however, the subject Arbitration Agreement contains a specific contractual prerequisite to arbitration, the service of a written “Notice of Dispute” which must include the information set forth in the Arbitration Agreement. See Arbitration Agreement, ¶4. The Arbitration Agreement then requires certain informal resolution procedures, followed by initiation of arbitration through the American Arbitration Association (“AAA”). See Arbitration Agreement, ¶¶4-5.

A trial court properly denies a motion to compel if a party seeking to compel arbitration has failed to meet specific demand requirements “pursuant to and under the terms of their written arbitration agreement.” *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 641.

Defendant has not shown service of a valid demand and compliance with the other prerequisites for contractual arbitration pursuant to and under the terms of their Arbitration Agreement.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is DENIED, without prejudice.
2. The Court will issue the order after hearing.

9. 9:00 AM CASE NUMBER: N25-2204
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KYO RAGO
*MOTION/PETITION TO COMPEL ARBITRATION PTN TO CONFIRM CONTRACTUAL ARB
FILED BY:

TENTATIVE RULING:

Petitioner JPMorgan Chase Bank, N.A. (“Petitioner”) filed a Petition to Confirm Contractual Arbitration Award on October 6, 2025 (the “Petition to Confirm”). The Petition to Confirm was set for hearing on December 23, 2025.

Background

An arbitration was conducted between the parties as set forth in the Award of Arbitrator dated September 16, 2025 (the “Arbitration Award”).

The Arbitration Award was issued as against defendant Kyo Prana-Yama Rago (“Defendant”) in the amount of \$3,861.49.

Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

The petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for the service of such petition and notice. Or, if none is provided, service must be in the manner provided by law for the service of summons in an action as to service within the state (otherwise service outside the state shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail). Code Civ. Proc. § 1290.4.

Once a party to an arbitration files a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless the court extends, or both parties agree to extend, this deadline. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil Procedure section 1283.4, to ensure that the arbitrator’s “award” is an “award” within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Petition to Confirm.** No proof of service has been filed to date reflecting service of the Petition to Confirm and notice of the hearing. See Code Civ. Proc. §§ 1290.2 and 1290.4. The Court hereby continues the matter to **February 10, 2025, 9:00 a.m. in Department 14.**